

The Boston Globe

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FRIDAY, SEPTEMBER 19, 2025

‘Employers have the right to discipline employees for things they say . . .’

DANIEL KLEIN, a labor and employment attorney at the Boston office of law firm Seyfarth Shaw



CHRIS PIZZELLO/ASSOCIATED PRESS

Talk show host Jimmy Kimmel was suspended this week by ABC for his comments about President Trump and his supporters.

After Kirk, free speech is tested

Employees who speak out can face consequences, and protections vary greatly from state to state

By Hiawatha Bray
GLOBE STAFF

How far can you go in expressing your opinions on the job without consequences? In the aftermath of the murder of conservative political activist Charlie Kirk, lots of people, whether on-air celebrities such as Jimmy Kimmel or school teachers, are finding out the hard way.

In the most spectacular case, ABC suspended talk show host Kimmel after he made on-the-air comments this week about the murder.

Kimmel accused Trump supporters of “trying to characterize this kid who killed Charlie Kirk as anything other than one of

A vigil for Kirk

More than 1,000 people gathered on Boston Common, many to mourn the conservative activist and some to protest him. **B1.**

them, and doing everything they can to score political points from it,” and then also took a dig at the president.

The remarks were interpreted by Trump supporters as an attempt to blame right-wingers for the fatal shooting of Kirk while he spoke at a Utah college. In the last week, MSNBC fired commentator Matthew Dowd for his on-air comments about Kirk and Washington Post columnist Karen Attiah was dismissed for her social media posts

about the incident.

But beyond those high-profile examples, dozens of others, ranging from Army officers to teachers, have gotten into hot water with their employers for online posts about Kirk.

In some states, workers have limited protections that might help them fight back, but in others, they have no recourse.

This is the latest chapter of the United States’ cultural polarization, playing out now on electronic media. In recent years, people have put their jobs at risk by commenting on any number of hot-button issues: the rights of Palestinians, the Black Lives Matter movement, or whether trans women can participate in women’s sporting events.

Private employers are generally free to discipline their employees, but some states place limits on how far workplaces can go.

JOBS, Page A5

ICE is seeking new office spaces in hundreds of locations to support plans to hire thousands of lawyers and immigration enforcement officers. **A5.**

The United States once again vetoed a UN Security Council resolution that demanded an immediate cease-fire in Gaza and the release of hostages. **A3.**

Bad news for Eversource home-heating gas customers in the state: They can expect to pay about 1.3 percent more this winter. **B5.**

The Red Sox lost again to the last-place Athletics and saw their lead for a wild card spot cut to a game and a half over Cleveland. **C1.**

More than **3,300 defendants do not have representation** in the district courts of Suffolk and Middlesex counties, including more than 50 in custody. In total, at least **258 people have been released** through the Lavallee protocol, including 156 in Boston.

SJC may decide on raises for bar advocates

By Sean Cotter
GLOBE STAFF

In an effort to end a work stoppage that has roiled the Massachusetts justice system, the state’s highest court will decide whether the trial courts can unilaterally increase pay for court-appointed attorneys, in a move that could have judges take on duties historically reserved for the Legislature.

The full seven-member panel of the Supreme Judicial Court could ultimately decide whether to raise appointed attorneys’ pay across the board or in individual cases, as it weighs the Legislature’s well-established control over spending against the judges’ concerns for the crisis in the courts.

The court will hear oral arguments in November, according to a Thursday court order.

The hearings would for the first time give all of the members of the court the ability to weigh in on a crisis that has gripped the criminal justice system since May, when many of the state’s private court-appointed attorneys, known as bar advocates, stopped taking new cases as they sought higher pay rates from the state.

The crisis has continued even after

legislative action. At the prompting of the state’s public-defender agency, the justices will now mull the extraordinary measure of taking a matter of spending into their own hands.

At issue is whether the judges should grant pay raises for the private attorneys. And if so, do they have the authority to?

Until now, only a single justice of the court has weighed in on the crisis. SJC Justice Dalila Arguez Wendlandt set up an emergency protocol for the courts to follow for cases in which a defendant was not appointed a lawyer, a constitutional right. But she

BAR ADVOCATES, Page A6

Kennedy panel calls for change on shots

Minor revisions to guidelines for childhood vaccines

By Jason Laughlin
GLOBE STAFF
AND GLOBE NEWS SERVICES

ATLANTA — A new advisory panel appointed by US Health Secretary Robert F. Kennedy Jr. made its first recommended modifications to childhood vaccine schedules Thursday, suggesting a modest change in how the shots for chickenpox, measles, mumps, and rubella are administered.

Instead of giving infants and very young children those vaccines all at once, the panel suggested having the chickenpox shot administered separately; the combined vaccine, known as MMRV, should not be given to children before age 4, the panel said in an 8-3 vote, with one abstention.

The panel, known as the Advisory Committee on Immunization Practices, is also considering a change to the hepatitis B schedule. The first shot is now given to infants on the day they are born. On Friday, the committee is expected to decide whether to recommend some parents wait one month for their infants to receive their first of three hepatitis B doses.

Also on Friday, the committee is expected to consider changes to recommendations for the COVID-19 vaccine, after Kennedy had already moved to limit access to those shots.

The committee advises the Centers for Disease Control and Prevention on changes to the federal government’s standing guidance on vaccines. The **VACCINES, Page A7**

GOP hopefuls see an opening with state flag

Governor candidates look to make it campaign issue

By Matt Stout
GLOBE STAFF

Massachusetts’ pursuit of a new state flag, seal, and motto has taken many forms over the last five years, from oft-debated legislation and a topic for multiple state commissions to a dinosaur running on Dunkin’.

Add a new one to the list: campaign talking point.

The two Republicans vying to unseat Governor Maura Healey are both calling to keep the state flag as is, rallying opposition online to its replacement and casting the effort to supplant the 19th-century emblem as an attempt to erase the state’s very history.

Mike Kennealy’s and Brian Shortleeve’s vocal opposition echoes arguments others have made here, and in other states, against retiring a longstanding symbol. But their new push could cast the debate into a broader arena, elevate a divisive issue, and, perhaps, also bring attention to their still-quiet primary to challenge Healey.

In turn, any move Healey and the Democrat-led Legislature make, or choose not to, in codifying a **FLAG, Page A6**

For narcolepsy sufferers, new drugs bring hope

Medicines could transform treatment for sleep disorder

By Jonathan Saltzman
GLOBE STAFF

When Katelynn O’Connell takes her lunch break at work, she follows a routine that sets her apart from other employees. Each day at noon, she unfolds a cot in her small office, turns on a white noise machine, and takes a 30-minute nap.

O’Connell has narcolepsy, a rare disorder that makes it difficult for people to stay awake during the day, disrupts their sleep at night, and, in some cases, causes sudden muscle weakness that makes them collapse. Since narcolepsy was first described in medical literature more than a century ago, people like O’Connell could only hope to treat its symptoms, leaving them vulnerable to the chronic sleepiness, depression, and feelings of isolation that mark the disease.

But the outlook for O’Connell and some three million people with narcolepsy worldwide — including 200,000 Americans — could soon improve. Several drug makers with a presence in

Massachusetts, including Takeda Pharmaceutical, Alkermes, and Centessa Pharmaceuticals, are racing to win approval of a new class of drugs that could transform treatment by addressing the disease’s underlying neurological causes.

Industry analysts say a safe and effective narcolepsy drug could become a blockbuster, generating annual sales of more than \$1 billion. But perhaps more intriguing, pharmaceutical executives say, these new drugs have the potential to treat other conditions marked by fatigue and impaired cognition — such as Alzheimer’s — much as GLP-1 drugs were first approved for diabetes but revolutionized the treatment of obesity.

For O’Connell, 37, of Woburn, the drugs have the potential to help her lead a less regimented life. Although she has largely been able to control her symptoms thanks to a medicine she began taking about a decade ago, she still must take naps to stay alert while working at a local re-

NARCOLEPSY, Page A7



JONATHAN WIGGS/GLOBE STAFF

Katelynn O’Connell said she has struggled with narcolepsy since her teenage years. She has managed it, but it’s taken a huge toll on her daily existence.



Before the fall

Friday: Breezy, summerish. High 77-82. Low 52-57.

Saturday: Cool at last. High 64-69. Low 49-54.

High tide: 10:18 a.m., 10:32 p.m.

Sunrise: 6:28 Sunset: 6:46

Weather and Comics, G6-7.

Obituaries, C9.

VOL. 308, NO. 81

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Suggested retail price
\$4.00

